

File No.: EXP202302773

RESOLUTION No.: R/00503/2023

Considering the complaint filed on February 2, 2023, with this Agency by A.A.A. (hereinafter, the complainant), against RESIDENCIA CONTINENTAL, S.L. (hereinafter, the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of access to the medical history of their deceased mother against the respondent, and their request, as stated by the complainant, did not receive the legally established response.

The complainant received a response from the respondent stating that, since one of their sisters was appointed as guardian by the mother, it should be she, the sister, who requests access to the medical history.

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on April 17, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days it could present any allegations it deemed appropriate. This entity states that, once the issues between the parties were clarified, they have attended to the right by providing the complainant with the requested information.

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FOURTH: The allegations presented by the respondent have been examined and are subject to transfer to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate.

The complainant chronologically recounts what has happened since they requested the right to their deceased mother's medical history.

Initially, the respondent put obstacles in their way and suggested that they request access through their sister (guardian during their mother's lifetime); later, they began sending documentation of the medical history. Initially, the quality was poor, blurry, and incomplete, but after several emails sent by the complainant to the respondent indicating the deficiencies, the complainant seems to have obtained the medical history, as, at the end of the allegations, what they request are sanctioning actions for violation of the applicable data protection regulations.

“...I wish to express that, regardless of whether Residencia Continental S.L. ultimately sends all the requested documentation, for which it has been necessary to file a complaint with this AEPD, and

continue to carry out numerous procedures as outlined, the refusals and obstacles from this company to provide information and documentation have been constant and repeated after my mother's death..."

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to the present procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

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The aforementioned admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld."

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge

(without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood to be granted if the data controller provides remote access to the data, considering the request to be fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during the six-month period, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

The right of access concerning medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulatory law on Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers will regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation."

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3. The patient's right to access the documentation of their medical history cannot be exercised to the detriment of the rights of third parties to the confidentiality of the data contained therein, which is

collected in the therapeutic interest of the patient, nor to the detriment of the rights of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners will only provide access to the medical history of deceased patients to individuals connected to them, for family or factual reasons, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical history motivated by a risk to their health will be limited to the pertinent data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that may harm third parties, will not be provided.

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical history:

“1. The medical history will include information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in primary care and specialized care.

2. The main purpose of the medical history will be to facilitate healthcare, documenting all data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical history will be as follows:

a) Documentation related to the clinical-statistical sheet.

b) Admission authorization.

c) Emergency report.

d) Anamnesis and physical examination.

e) Evolution.

f) Medical orders.

g) Consultation sheet.

h) Reports of complementary examinations.

i) Informed consent.

j) Anesthesia report.

k) Operating room report or delivery record.

l) Pathological anatomy report.

m) Nursing care evolution and planning.

n) Therapeutic nursing application.

ñ) Constants chart.

o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) will only be required in the completion of the medical history when it concerns hospitalization processes or as otherwise provided.

3. The completion of the medical history, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical history will be maintained with criteria of unity and integration, at each healthcare institution at a minimum, to facilitate the best and most timely care.”

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knowledge by the healthcare professionals of the data of a specific patient in each healthcare process.”

Regarding the preservation of the medical record, Article 17 of the LPA, in its sections 1 and 5, provides that:

“1. Healthcare centers are obliged to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original format, for the proper assistance to the patient for the appropriate duration in each case and, at a minimum, five years from the date

of discharge from each healthcare process...

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the healthcare documentation they generate.”

FIFTH: In the case analyzed here, the claimant exercised the right of access to the medical record of her deceased mother, and the request has been addressed throughout the procedure.

Two aspects need to be clarified: the first for the responding party, which must act diligently when addressing the right and ensure that the documentation sent is in a perfect state of being understood, with no blurred or cut pages that could distort the information.

The second aspect relates to the claimant, who must understand that the data of third parties do not form part of the right of access. This personal right contains exceptions such as the possibility of obtaining medical data of a deceased relative; however, it does not encompass the name or names of third parties that may appear in the documentation, which must be concealed/anonymized as a prerequisite to providing the medical record in this case. Therefore, the identification of a third party cannot be requested as part of the right of access. Based on the above, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that the right has been addressed throughout the procedure, this claim is upheld for formal reasons.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by A.A.A., against the entity RESIDENCIA CONTINENTAL, S.L. However, the issuance of a new certification by said entity is not warranted, as the response was issued late without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to RESIDENCIA CONTINENTAL, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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